

Mohammad Shafeeq v. U.P. Power Corporation

High Court of Judicature at Allahabad · Division Bench · 3 August 2017 · WRIT - C No. 34524 of 2017 · **Writ disposed; billing to CGRF; 6.14 installments to be considered.**

HEADNOTE

The High Court will not decide a billing dispute in writ jurisdiction, without prejudice to the consumer approaching the Consumer Grievances Redressal Forum. If the consumer applies under Clause 6.14 of the U.P. Electricity Supply Code, 2005 to clear dues in installments, the Executive Engineer shall consider the request sympathetically and provide easy installments on a domestic connection.

FACTUAL SUMMARY

Mohammad Shafeeq had earlier approached the High Court questioning payment of electricity dues. Treating the dispute as billing in nature, the Court directed him to the concerned Executive Engineer, who on 18 January 2017 passed an order defining the petitioner's liability. Still disputing that determination, Shafeeq filed this writ petition against U.P. Power Corporation and others in respect of a domestic connection. Counsel for the petitioner and for the Electricity Department were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installments of electricity dues

HOLDING

A billing dispute is not to be decided in writ jurisdiction, without prejudice to the consumer raising it before the Consumer Grievances Redressal Forum. If the consumer applies under Clause 6.14 of the U.P. Electricity Supply Code, 2005 to clear dues in installments, the Executive Engineer shall consider the request sympathetically and make provision for easy installments, having regard to the domestic nature of the connection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE EXECUTIVE ENGINEER'S 18.01.2017 ORDER DEFINING THE PETITIONER'S ELECTRICITY LIABILITY, AND THE BILLING DISPUTE ON MERITS.

Relegated to the Consumer Grievances Redressal Forum. ¶ 1